

Court No. - 38

Case :- WRIT - C No. - 31976 of 2018

Petitioner :- Vindeshwari Parsad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Uday Prakash Sriwastawa, S. A. Khan

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Rajiv Gupta, J.

Heard learned counsel for the petitioner; Shri Narendra Kumar Tiwari, learned counsel for the respondent no. 2 and learned Standing Counsel for the State-respondents no. 1, 3 & 4.

By means of this writ petition the petitioner has come to this Court challenging the recovery citation dated 8.8.2018. The said citation has been issued on non-payment of electricity dues.

The grievance of the petitioner is that wrong calculations have been made in the bill and he has filed a representation before the Executive Engineer and without considering that representation citation has been issued.

It is to be noted that under Clause 6.5 of the Electricity Supply Code, 2005 the petitioner can make an objection before the Executive Engineer.

According to the petitioner, the petitioner has already filed an objection but the same has not been decided.

The writ petition is disposed of with the observation that in case the petitioner files a fresh objection along with a certified copy of this order before the Executive Engineer, the Executive Engineer will consider and decide the same in accordance with law within one month from today.

For a period of one month no coercive action shall be taken against the petitioner pursuant to recovery citation dated 8.8.2018.

Order Date :- 20.9.2018

Sunil Kr. Gupta

(Rajiv Gupta, J.) (Abhinava Upadhyaya, J.)